Several provisions triggered alarm. One relates to a 'designated authority', a government-appointed body empowered to take control of foreign funds and assets, including property, if an organisation's FCRA licence is cancelled, suspended or surrendered. Another allows the transfer or sale of assets of 'defunct' or banned NGOs, with proceeds going to the Consolidated Fund of India. The amendments also widen the definition of 'key functionaries' (directors, trustees, key staff) to increase personal liability, impose a three-year cap on the use of foreign funds and tighten administrative spending rules.

BILL FUELS FEARS OF...

- Central takeover of NGO funds and assets
- Excessive govt control over community-run institutions
- Increased personal liability for NGO functionaries
- Disruption to church-run hospitals, schools, charities
- Selective targeting and religious persecution

KERALA CHURCH LEADERS ARGUE THAT THE PROPOSED FCRA AMENDMENTS COULD PARALYSE NGOs DEPENDENT ON FOREIGN FUNDING

Church leaders argue that the changes could paralyse NGOs dependent on foreign funding and disrupt the functioning of hospitals, schools and orphanages. Father Michael Pulickal, secretary of the Kerala Catholic Bishops Council, calls the move anti-democratic, which violates fundamental rights and minority rights. "We fear that the amendment will lead to selective religious persecution," he tells INDIA TODAY. Criticism of the law predates the proposed amendment. "The FCRA was like carpet bombing of a whole country, choosing those who were doing simple things—women's rights, environmental laws, Dalit rights, housing rights, labour laws, farmers' rights," says Colin Gonsalves, senior lawyer and founder of the Human Rights Law Network. "As many as 20,000 of them have gone. But nobody went to court. The fight has to be collective."

The bill raised a lot of dust in Kerala, which went to the polls on April 9, and in Tamil Nadu, set to vote on April 23. On April 2, Tamil Nadu chief minister M.K. Stalin alleged that the proposed bill was a direct attack on Christian NGOs, churches and other minority institutions. "Despite stepping back for now due to Opposition protests and upcoming elections in Kerala, where Christians live in large numbers, there are clear plans to push FCRA through a special session of Parliament," he posted on X. Shashi Tharoor, Congress MP from Thiruvananthapuram, agreed: "The Centre's reported withdrawal of the FCRA Amendment Bill cannot be fully trusted.... The Opposition will not allow the passage of any amendment."

Kerala, where Christians account for 18.4 per cent of the population, has 3,090 organisations registered under FCRA with the Union home ministry. In 2017, the ministry cancelled the registration of 126 organisations. In 2020 and 2022, the income tax department confiscated allegedly unaccounted money of Rs 15 crore from the Believers Eastern Church premises.

On April 4 in Thrissur, Union minister of parliamentary affairs and minority affairs Kiren Rijiju sought to allay the fears: "The Christian community need not worry at all...the bill will help and support good NGOs, and will only target those illegal organisations that are working against India's interests and those who are illegally funding money for wrongful purposes."

BJP'S DILEMMA

BJP leaders in Kerala were wary of the bill's timing and its potential to consolidate Christian voters against the party. They responded with outreach efforts, but tensions spilled into the poll arena, when senior leader P.C. George, contesting from Poonjar, alleged that Kanjirappally Bishop Jose Pulickal directed convents to back Congress nominees in Poonjar. "I was with the church when they had problems. But the shameless people are working for the Congress candidate," he said. George backed the proposed amendment, urging the Church to disclose its foreign funding to ensure transparency. His son Shone George, the party's state vice president and fielded in Pala, also echoed the criticism, alleging that the Church-run daily *Deepika* carried fake reports against the BJP during the campaign. "If the Church continues to work against the BJP, we will show a similar attitude towards them," George told INDIA TODAY.

After winning the Thrissur Lok Sabha seat in 2024, the BJP intensified its engagement with Christians and saw some success among sections of the community. The state leadership also pushed the 'love jihad' campaign, targeting radical Muslim organisations as part of its broader strategy. There had been signs of warming earlier, too. In 2023, former Syro Malabar Church head Cardinal George Alencherry described Prime Minister Narendra Modi as a "good leader and statesman" and said the BJP was no threat to Christians. Leaders such as Archbishop Joseph Pamplany and Bishop emeritus Mathew Arackal had also reached out to the party. The FCRA move, however, has strained these gains. The bill may be on hold, but mistrust lingers. ■